

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2049

By: Stinson

AS INTRODUCED

An Act relating to Medicaid parity; providing coverage for mental health and substance use disorders; providing for contract compliance; providing for noncompliance reviews; directing the Oklahoma Health Care Authority to develop a process for complaints; providing for publication of reports; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 4005 of Title 56, unless there is created a duplication in numbering, reads as follows:

A. For Medicaid managed care plans, the Oklahoma Health Care Authority shall ensure that the insurers, health plans, and managed care plans comply with federal and state laws, rules, and regulations applicable to coverage for mental health or substance use disorder services.

B. Contracts with Medicaid managed care plans must require entities to conduct regular parity compliance analysis that contain the information described in 42 U.S. Code Section 300gg-26(a)(8)(i-

1 v) for each nonquantitative treatment limitation imposed on mental
2 health or substance use disorder benefits in any classification of
3 care.

4 C. Contracts with Medicaid managed care plans must include
5 language requiring managed care plans and entities to conduct parity
6 analysis described in subsection B of this section for a
7 nonquantitative treatment limitation whenever as-written or in-
8 operation changes or amendments are made to that nonquantitative
9 treatment limitation, including prior authorization requirements.

10 D. State Medicaid programs and Children's Health Insurance
11 Programs (CHIP) must review and compile the analysis from all
12 managed care, CHIP, and alternative benefit plans to ensure
13 compliance and address any noncompliance through a standardized
14 process to mitigate findings of noncompliance.

15 E. The Oklahoma Health Care Authority shall develop a
16 standardized process for receiving, investigating, substantiating,
17 and resolving parity complaints.

18 F. The Oklahoma Health Care Authority shall make public the
19 surveys, financial analysis, managed care contract audits, de-
20 identified substantiated parity complaints, and parity reports
21 prepared by the managed care entities and plans and the reports they
22 submit to document parity compliance.

23 G. The Oklahoma Health Care Authority shall also make public
24 any parity analysis, summary, or report submitted to the Centers for

1 Medicare and Medicaid Services regarding the Oklahoma Medicaid
2 managed care program within thirty (30) days of the state's
3 submission of these reports to the Centers for Medicare and Medicaid
4 Services.

5 SECTION 2. This act shall become effective November 1, 2025.

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